

Court No. - 32

Case :- WRIT - C No. - 9784 of 2011

Petitioner :- Jagdish Pal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava,P.K. Singh

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Ashok Srivastava,J.

The petitioner is permitted to impleade Executive Engineer, Electricity Urban Distribution Division-II, Aligarh as respondent no.5.

Heard learned counsel for the petitioner, learned standing counsel and Shri Rajesh Tripathi for the contesting respondent nos.2 to 5.

Although several prayers have been made in this petition but the only prayer pressed by the learned counsel for the petitioner is with regard to the bill for the period of 13.10.2010 to 14.11.2010. It is contended that the said bill includes certain amounts, which have already been deposited by the petitioner and the petitioner would be entitled to adjustment of such amount, which has not been given.

Shri Rajesh Tripathi, learned counsel for the respondents states that under clause 6.5 of the U.P. Electricity Supply Code, 2005, the petitioner has a remedy to file an appeal before the respondent no.5.

In view of the aforesaid and with the consent of learned counsel for the parties, this petition is finally disposed of with the direction that in case with regard to his grievance the petitioner files his complaint before the respondent no.5, the said respondent shall consider and decide the same in accordance with law and if necessary after giving opportunity of hearing to the petitioner expeditiously preferably within a period of six weeks from the filing of the same without taking any objection with regard to delay. In case the complaint is filed within two weeks, till its decision, the electricity connection of the petitioner shall not be disconnected only because of non-payment of the aforesaid bill.

Order Date :- 18.2.2011

m.a.